

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #6	CCRB Case #: 201800773	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 01/26/2018 4:40 PM	Location of Incident: The intersection of § 87(2)(b); in front of § 87(2)(b)		Precinct: 81	18 Mo. SOL 7/26/2019	EO SOL 7/26/2019
Date/Time CV Reported Mon, 01/29/2018 12:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/29/2018 12:14 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Abel Lovera	01160	954081	081 PCT
2. POM Soney Varghese	15438	957246	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Soney Varghese	Abuse: At the intersection of § 87(2)(b) Street in Brooklyn, Police Officer Soney Varghese frisked § 87(2)(b)	§ 87(2)(b)
B.POM Abel Lovera	Abuse: In front of § 87(2)(b) in Brooklyn, Police Officer Abel Lovera interfered with § 87(2)(b)'s use of a recording device.	§ 87(2)(b)
C.POM Abel Lovera	Force: In front of § 87(2)(b) in Brooklyn, Police Officer Abel Lovera used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On January 29, 2018, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board via the on-line website.

On January 26, 2018, PO Abel Lovera and PO Soney Varghese of the 81st Precinct stopped § 87(2)(b) and § 87(2)(b) at approximately 4:40 PM, near the intersection of § 87(2)(b) in Brooklyn, as they operated their respective bicycles. PO Varghese exited his RMP, approached § 87(2)(b) and frisked him (**Allegation A: Abuse of Authority**, § 87(2)(b)). PO Lovera remained in the RMP.

In the midst of the stop, § 87(2)(b) fled the scene on his bicycle. PO Varghese left § 87(2)(b) at the intersection and reentered the RMP to pursue § 87(2)(b).

§ 87(2)(b) followed PO Varghese and PO Lovera. § 87(2)(b)

§ 87(2)(b) came to a stop in front of § 87(2)(b)'s home, located at § 87(2)(b)

between the avenues of § 87(2)(b), and entered the front yard.

§ 87(2)(b) dismounted his bicycle and entered the front yard to record a video of the incident on his cellphone. § 87(2)(b) held his right arm outstretched and as he began to record. PO Lovera approached and allegedly knocked § 87(2)(b)'s right arm towards the ground (**Allegation B: Abuse of Authority**, § 87(2)(g)). § 87(2)(b) and immediately punched § 87(2)(b)'s face (**Allegation C: Force**, § 87(2)(g)). § 87(2)(b) was arrested for Obstructing Governmental Administration, resisting arrest and reckless operation of a bicycle. § 87(2)(b) was arrested for § 87(2)(b) but ultimately released with a summons for this violation. § 87(2)(b) was not released with a summons as he had an open warrant.

Video footage of the incident was obtained from § 87(2)(b). It briefly depicts the aftermath of the scene in front of § 87(2)(b) in Brooklyn. The video file can be found in IA 30 (BR 01).

Findings and Recommendations

Allegation A - Abuse of Authority: At the intersection of § 87(2)(b) **Police Officer Soney Varghese frisked § 87(2)(b)**

It is undisputed that PO Varghese frisked § 87(2)(b). § 87(2)(b) testified that he departed from his home to go to a nearby Walgreens, at § 87(2)(b) in Brooklyn. § 87(2)(b) was accompanied by his friend/neighbor, § 87(2)(b) who resides at § 87(2)(b) in Brooklyn. At the time of the incident, he wore tight clothing; a black, Nike pullover hoodie and white, Adidas track pants. Aside from his bicycle, § 87(2)(b) was only in possession of \$50.00, his cellphone, and his keys, which were in his pants' front, upper-thigh pocket. § 87(2)(b) and § 87(2)(b) walked their respective bicycles to the northwest corner of the intersection of § 87(2)(b), a two-way street, and § 87(2)(b) and merged into traffic. § 87(2)(b) was positioned behind § 87(2)(b) as they rode northbound on § 87(2)(b). Upon observing a red-light on a three-phase traffic light, at the intersection of § 87(2)(b), § 87(2)(b) came to a stop at the southeast corner of the intersection. § 87(2)(b) glimpsed the body of the RMP in his peripheral vision as he heard the sound of a car door opening and yelling, and noticed, outstretched arms moving towards him. § 87(2)(b) proceeded through the light and pulled over the northeast corner of the same intersection. § 87(2)(b) remained straddled on his bicycle as PO Varghese approached. PO Varghese asked § 87(2)(b) where he was going, and immediately began to pat § 87(2)(b) down. PO Varghese asked § 87(2)(b) whether he had anything on him, whether he had a gun, and why he tried to peddle away as he made physical

contact with § 87(2)(b)'s inner thighs, groin, chest, abdomen, and the sides of his torso. § 87(2)(b) told PO Varghese that he was going to the store, did not have anything on him, and did not know that PO Varghese was an officer. PO Lovera remained in the RMP during this time (BR 02).

§ 87(2)(g)
§ 87(2)(b) was arrested for § 87(2)(b). § 87(2)(g) was arrested for § 87(2)(b) but ultimately released with a summons for this violation. § 87(2)(b) was not released with a summons as he had an open warrant for an unpaid ticket.

§ 87(2)(b) failed to participate with this investigation (BR 04).
PO Varghese testified that he was a passenger in the RMP during a routine patrol when he observed § 87(2)(b) and § 87(2)(b) operating their respective bicycles, in the opposite direction of the RMP, “recklessly” near the intersection of § 87(2)(b) and § 87(2)(b). They were each going at a “high rate of speed,” which PO Varghese could not estimate, and § 87(2)(b) rode on the sidewalk, at which time multiple pedestrians were ambulating on it. PO Varghese could not recall where he, § 87(2)(b) and § 87(2)(b) stood in proximity to the RMP once they stopped. PO Varghese asked § 87(2)(b) for ID. § 87(2)(b) asked PO Varghese why he was stopped and why PO Varghese needed his ID, which PO Varghese described as “irate.” PO Varghese could not recall what § 87(2)(b) wore or whether it was loosely fitted, but acknowledged that he did not observe any bulges on § 87(2)(b). PO Varghese feared for his own safety because § 87(2)(b) became “irate” and PO Varghese did not know what § 87(2)(b) had. PO Varghese also described § 87(2)(b) as “loud and belligerent,” but noted that § 87(2)(b) was not cursing. PO Varghese believed § 87(2)(b) to be armed and dangerous because he was “loud.” PO Varghese denied asking § 87(2)(b) where he was going or whether he had anything on him. PO Varghese initially stated that he frisked § 87(2)(b) after he asked him for ID, but later amended his statement, noting that he could not recall which action occurred first. PO Varghese patted the circumference of § 87(2)(b)'s waistband. PO Varghese could not recall whether he frisked § 87(2)(b)'s groin, chest, abdomen, or the sides of § 87(2)(b)'s torso. PO Varghese denied patting down § 87(2)(b)'s inner-thighs. PO Varghese did not produce any items from the frisk. PO Lovera remained in the RMP (BR 05). PO Varghese conducted the frisk on the scene prior to obtaining § 87(2)(b)'s identification.

§ 87(2)(g)
PO Lovera observed both § 87(2)(b) and § 87(2)(b) weave through traffic and, briefly, operate their respective bicycles on the sidewalk. After PO Lovera brought the RMP to a stop, he remained inside of it as PO Varghese exited and approached § 87(2)(b). PO Lovera observed PO Varghese pat down § 87(2)(b) who still straddled his bicycle at the time. PO Lovera could not recall where PO Varghese made physical contact with § 87(2)(b) (BR 06). As PO Lovera, it was only after § 87(2)(b) and § 87(2)(b) were at the stationhouse that it was discovered that § 87(2)(b) had an outstanding warrant.

Patrol Guide Procedure 212-11 defines a frisk as a limited running of the hands over the outside of a person's clothing feeling for a deadly weapon or any instrument, article or substance readily capable of causing serious physical injury. A frisk is authorized when an officer reasonably suspects the person is armed and dangerous. This includes situations in which the officer reasonably suspects that the person has committed, is committing, or is about to commit a

violent crime or when the officer observes something on the person that she/he reasonably suspects is a weapon. A frisk may not be conducted to discover evidence or the proceeds or instrumentalities of a crime. The same Patrol Guide procedure defines reasonable suspicion as a particularized and objective basis for suspecting the person stopped of criminal conduct. An officer must be able to articulate specific facts; hunches or gut feelings are insufficient (BR 07).

According to the 81st Command Log and Property Clerk Invoice #: § 87(2)(b) § 87(2)(b) was in possession of \$50.00, a cellphone, and a cellphone cover (BR 08 and BR 09).

§ 87(2)(g)

§ 87(2)(g)

Allegation B - Abuse of Authority: In front of § 87(2)(b) t in Brooklyn, Police Officer Abel Lovera interfered with § 87(2)(b)'s use of a recording device.

Allegation C - Force: In front of § 87(2)(b) in Brooklyn, Police Officer Abel Lovera used physical force against § 87(2)(b)

It is undisputed that PO Lovera punched § 87(2)(b) in his face.

§ 87(2)(b) testified that as PO Varghese appeared to conclude the stop, § 87(2)(b) § 87(2)(b) turned around on his bicycle and headed in the direction of their houses. PO Varghese reentered the RMP and PO Lovera executed a U-turn in pursuit of § 87(2)(b). § 87(2)(b) followed on his bicycle, dismounting at the intersection of § 87(2)(b). § 87(2)(b) removed his cellphone as he approached his house, on foot, because he intended to record the incident. § 87(2)(b) observed § 87(2)(b) and PO Varghese standing in the upper-right corner of his gated front yard. The RMP was double-parked in front of § 87(2)(b)'s house and PO Lovera was still inside of it. § 87(2)(b) entered his yard, opened the media app on his phone, and approached the ground-level side entrance to his house. § 87(2)(b) estimated that there were three arm's lengths between himself, and PO Varghese and § 87(2)(b) held his cellphone, outstretched, in right hand and as soon as he began to press record, he felt his right forearm smacked down towards the ground. § 87(2)(b) lowered his right arm and was immediately punched in the face by PO Lovera, who had approached § 87(2)(b) from the rear and had not issued any commands. The punch landed on the left side of § 87(2)(b)'s face. PO Lovera tried to take § 87(2)(b) to the ground, however § 87(2)(b) remained on his feet. PO Lovera then tried to bring § 87(2)(b)'s arms behind his back as he informed § 87(2)(b) that he was under arrest. § 87(2)(b) was not injured and did not seek medical attention (BR 02).

PO Lovera testified that § 87(2)(b) approached the scene of his front yard, shortly after PO Varghese did. From the RMP, PO Lovera observed § 87(2)(b) enter the front yard and start to "interfere" by standing within arm's length of, "almost" in between, and facing, both PO Varghese and § 87(2)(b) held out an outstretched arm and appeared

to be trying to record the incident. § 87(2)(b) did not try to physically intervene, but PO Lovera noted that § 87(2)(b) was screaming and appeared upset. PO Lovera exited the RMP for PO Varghese's safety, approached § 87(2)(b) and informed him that he could record the incident, but he would have to do so from a greater distance, so as not to interfere with PO Varghese's stop. § 87(2)(b) remained in place, and did not comply, although PO Lovera instructed him to step back numerous times. PO Varghese could not recall whether he hit one of § 87(2)(b)'s arms as he held a cellphone and did not intend to interfere with § 87(2)(b)'s ability to record. PO Lovera informed § 87(2)(b) that he would be placed under arrest for interfering with PO Varghese's stop; § 87(2)(b). PO Lovera instructed § 87(2)(b) to place his hands behind his back, however § 87(2)(b) did not comply. PO Lovera reached to grab § 87(2)(b) however he evaded PO Lovera's grasp. PO Lovera attempted to take § 87(2)(b) down to the ground to handcuff him, however he was unable to because § 87(2)(b) flailed his arms. PO Lovera and § 87(2)(b) began to grapple and push one another. PO Lovera went over the radio and requested additional units because he could not take § 87(2)(b) down, however he was eventually able to handcuff § 87(2)(b) without assistance. In order to overcome § 87(2)(b)'s actions/movements and gain compliance, PO Lovera punched § 87(2)(b) in the face once. § 87(2)(b) who never attempted to hit PO Lovera, remained on his feet. PO Lovera could not recall whether he punched § 87(2)(b) before or after he requested assistance (BR 06).

PO Varghese testified that he did not become aware of § 87(2)(b)'s presence in the front yard until he noticed PO Lovera had exited the RMP. PO Varghese noticed this when he heard PO Lovera and § 87(2)(b) "talking back and forth." PO Varghese could not recall what was being discussed between them, but heard PO Lovera state, "Just get back." PO Varghese could not recall whether § 87(2)(b) appeared to try to record the incident. PO Varghese did not know § 87(2)(b)'s proximity to him, as § 87(2)(b) was located behind him, but noted that § 87(2)(b) never got in between him and § 87(2)(b). PO Varghese heard PO Lovera request additional units, but did not see what transpired between him and § 87(2)(b) and did not observe PO Lovera punch or strike § 87(2)(b) (BR 05).

UF-61 #: § 87(2)(b) was prepared by PO Lovera. The narrative states that PO Lovera observed § 87(2)(b) operating a bicycle recklessly and while conducting a stop, § 87(2)(b) was aggressive and after being told numerous times, did not follow instructions to get back. § 87(2)(b) was told to place his hands behind his back and refused by flailing his arms (BR 10).

TRI Report #: § 87(2)(b) was prepared by PO Lovera. Within the report, PO Lovera noted that wrestling/grappling and pushing/shoving were used against him and acknowledged that he used force, a hand strike, for the following reasons: defense of self, defense of another MOS, fleeing suspect, overcome resistance or aggression (BR 11).

The video footage that was obtained has audio, however it was captured, from a significant distance, at the conclusion of the incident and has a poor quality (BR 01). Although § 87(2)(b) attempted to record the incident, his cellphone never captured any footage.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 12).
- PO Lovera has been a member of service for five years and has been a subject in four CCRB complaints and six allegations, one of which has a pending disposition. None of the remaining allegations were substantiated (BR 13). § 87(2)(g)
- PO Varghese has been a member of service for three years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated (BR 14). § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 15, 2018, the New York City Office of the Comptroller has no records of a Notice of Claim being filed in regards to this complaint (BR 16).

Squad No.: 6

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date